



CHAPTER 26.

An Act to make provision for centralised buying, selling and distribution of raw cotton, for the establishment of a Commission for that purpose and for the purpose of research in connection with raw cotton and its manufacture, and for matters connected therewith.

[21st May 1947.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Provisions for establishing centralised buying.

1.—(1) There shall be a Raw Cotton Commission who shall, on and after the appointed day, be charged with the duty of buying, importing into the United Kingdom, and holding and distributing therein, all raw cotton required for the purposes of the cotton industry of the United Kingdom and of other persons using raw cotton therein, and raw cotton required therein for the purposes of the re-export trade in raw cotton.

Establishment
and primary
functions of
the Raw Cotton
Commission.

(2) The quantities, growths, types and qualities, of the raw cotton to be bought and imported by the Commission shall be such as to be suitable to meet the requirements in the United Kingdom—

- (a) primarily, of persons whose business it is to subject raw cotton to any process of manufacture, and
- (b) so far as may be consistent with meeting the requirements of those persons, of the re-export trade.

(3) The prices at which the Raw Cotton Commission (in this Act referred to as "the Commission") sell raw cotton shall be such as may seem to them best calculated to further the public interest in all respects.

(4) The Commission shall, so far as may be consistent with the proper discharge of their duty under the last preceding subsection, render raw cotton available to persons in the United

Kingdom whose business it is to subject it to any process of manufacture at prices as low as may be possible consistently with securing that the revenues of the Commission shall be not less than sufficient, with any appropriations from their reserve fund to be established under this Act, for meeting all their outgoings properly chargeable to revenue account (including, without prejudice to the generality of that expression, provisions in respect of their obligations under section seventeen, subsection (2) of section eighteen, and section nineteen of this Act) on an average of good and bad years.

Raw cotton to
be imported
only by the
Commission.

2.—(1) On and after the appointed day no person other than the Commission or their agent shall import or cause to be imported into the United Kingdom any raw cotton :

Provided that this subsection shall not apply—

- (a) subject to compliance with such conditions as the Commissioners of Customs and Excise may impose for securing the re-exportation thereof, to cotton imported solely with a view to the re-exportation thereof after transit through the United Kingdom or by way of trans-shipment ;
- (b) to a person acting in relation to the importation in question under the authority of a licence granted by the Board of Trade (in this Act referred to as " the Board ") and in accordance with the terms of the licence ; or
- (c) to cotton imported in a quantity small enough to indicate to the satisfaction of the Commissioners of Customs and Excise that it is imported as a sample only.

(2) Any officer of Customs and Excise may seize any raw cotton with respect to which he may have reason to believe that the preceding subsection has been contravened, and may detain it pending the determination of any proceedings instituted in respect of the importation or until the Board certify that no such proceedings are likely to be instituted.

Any cotton so detained shall be detained at the owner's risk in such place and manner as the Board may direct, and, if any such proceedings as aforesaid result in a conviction, the cotton shall be disposed of as the Board may direct, and the Board shall have power by such a direction to vest the property in the cotton in the Commission or in any other person.

(3) Before granting a licence for the purposes of this section the Board shall consult the Commission.

Prohibition of
dealings in raw
cotton except
with the
consent of the
Commission.

3.—(1) On and after the appointed day no person other than the Commission shall, without the previous consent in writing of the Commission, sell, agree to sell or offer to sell, any raw cotton otherwise than under a contract providing for delivery outside the United Kingdom.

(2) Where the Commission have made with any person a contract of sale which provides that raw cotton sold to him thereunder is sold with a view to his subjecting it to some process of manufacture in the United Kingdom, he shall not, without the previous consent in writing of the Commission, re-export any of it, or cause or permit any of it to be re-exported, therefrom.

(3) Where—

(a) the Commission have made with any person a contract of sale which provides that raw cotton sold to him thereunder is sold with a view to his re-exporting it from the United Kingdom, or

(b) a person has acquired the property in or possession of any raw cotton by virtue of any mortgage, charge or pledge thereof to him,

he shall not, without the previous consent in writing of the Commission, subject any of it, or cause or permit any of it to be subjected, to any process of manufacture in the United Kingdom.

(4) In this section references to selling shall be construed as references to entering into a contract which is a contract of sale within the meaning of the Sale of Goods Act, 1893, or which is a contract similar to such a contract in other respects but made for a consideration wholly or partly in money's worth and not, or not only, in money, and to entering into any transaction, in whatsoever form expressed, in so far as its effect is in substance the same as the effect of such a contract as aforesaid; and references to agreeing to sell or offering to sell shall be construed accordingly. ^{56 & 57 Vict. c. 71.}

4. If any person contravenes any of the provisions of the two last preceding sections, or any of the terms of a licence granted for the purposes of section two of this Act, he shall be guilty of an offence and shall be liable— ^{Punishment for prohibited importation or dealing.}

(a) on summary conviction, to a fine not exceeding one hundred pounds or to imprisonment for a term not exceeding three months or to both such fine and such imprisonment; or

(b) on conviction on indictment, to a fine not exceeding five hundred pounds or to imprisonment for a term not exceeding two years or to both such fine and such imprisonment.

Constitution of the Commission, etc.

5.—(1) The Commission shall be a body corporate by the name of "the Raw Cotton Commission," with perpetual succession and a common seal and power to hold land without licence in mortmain.

(2) The principal office of the Commission shall be in Liverpool and a branch office shall be established in Manchester.

(3) The Commission shall consist of the following members, appointed by the Board, that is to say—

(a) a chairman and either one or two other members as the Board may from time to time think expedient (in this Act referred to as the "independent members") who shall be appointed as being independent persons and shall be required to devote their time primarily to their duties as members of the Commission; and

(b) other members (in this Act referred to as the "part-time members") to such number, not exceeding ten, as the Board may from time to time think expedient.

(4) The persons to be appointed as members of the Commission shall be appointed from amongst persons appearing to the Board to have the following qualifications, that is to say—

(a) as regards the independent members, having had experience of, and having shown capacity in, industrial, commercial or financial matters, or in administration, or having special knowledge of the cotton industry or of some branch thereof, of the business of merchanting raw cotton or of the business of a raw cotton broker;

(b) as regards the part-time members, as to not less than two of them, having special knowledge of the interests of operatives employed in the cotton industry, and as to the others, having special knowledge of the cotton industry or of some branch thereof, of the business of merchanting raw cotton or some products of the cotton industry or of the business of a raw cotton broker, so however that, in the case of not more than two of those others, the persons to be appointed may be selected as having had experience of, and having shown capacity in, industrial, commercial or financial matters or in administration, whether or not they have such special knowledge as aforesaid.

(5) A person shall be disqualified for being appointed or being a member of the Commission so long as he is a member of the Commons House of Parliament.

(6) The independent member other than the Chairman, or, whilst there are two such members, whichever of them is for the time being directed by the Board so to act, shall be deputy chairman of the Commission.

(7) There shall be paid to the members of the Commission such salaries and allowances as may be determined by the Board with the approval of the Treasury, and, on the retirement or death of any of the independent members as to whom it may be so

determined to make such provision, such pensions and gratuities to them or to others by reference to their service as may be so determined.

(8) The Commission shall appoint a secretary and such other officers, agents and servants as the Commission may determine, and there shall be paid to them such remuneration as the Commission may determine, and, on the retirement or death of any of them as to whom the Commission may, with the approval of the Board, determine to make such provision, such pensions and gratuities to them or to others by reference to their service as the Commission may so determine.

(9) Salaries, allowances and remuneration under subsections (7) and (8) of this section shall be paid out of the revenues of the Commission.

(10) Any pensions or gratuities under subsections (7) or (8) of this section shall be paid or provided for in such manner as may be determined—

(a) in the case of any to be paid under subsection (7), by the Board with the approval of the Treasury, or

(b) in the case of any to be paid under subsection (8), by the Commission with the approval of the Board,

either wholly out of the revenues of the Commission or partly thereout and partly by means of contributions.

(11) The Board may make regulations with respect to—

(a) the appointment of, and the tenure and vacation of office by, the members of the Commission ;

(b) the quorum, proceedings and meetings of the Commission, and determinations of the Commission ; and

(c) the execution of instruments and the mode of entering into contracts by and on behalf of the Commission, and the proof of documents purporting to be executed, issued or signed by the Commission or a member, officer or servant thereof.

(12) Subject to the provisions of any regulations made under the last preceding subsection, the Commission shall have power to regulate their own procedure.

(13) Nothing in this Act shall be deemed to exempt the Commission from liability for any tax, duty, rate, levy or other charge whatsoever, whether general or local.

6.—(1) It shall be the duty of the Board to satisfy themselves, with respect to any person whom they propose to appoint to be an independent member of the Commission, that that person will have no such financial or commercial interest as is likely to

Provisions
as to
independent
members of the
Commission.

affect him in the discharge of his functions as an independent member, and also to satisfy themselves from time to time, with respect to any independent member, that he has no such interest as aforesaid.

An independent member shall, whenever requested by the Board so to do, furnish to them such information as they consider necessary for the purpose of their duty under this subsection.

(2) A person who has been an independent member of the Commission shall not, during the period of six months beginning with the date on which he ceases on any occasion to be such a member, carry on business in the cotton industry or the business of merchanting raw cotton or any products of the cotton industry or the business of a raw cotton broker, or be a director, officer or servant of any undertaking carrying on any such business.

If any person contravenes any of the provisions of this subsection, he shall be liable on summary conviction to a fine not exceeding one hundred pounds, and if a contravention thereof of which a person has been convicted is continued after the conviction, he shall be guilty of a further offence and liable on summary conviction to a fine not exceeding twenty pounds for each day on which the contravention is so continued.

(3) The Board shall from time to time consider and decide what functions of the Commission are functions as to which determinations of the Commission ought, having regard to their independent status, to be taken by the independent members only, or what other provision ought to be made for giving to the independent members competence in relation to any affairs of the Commission to the exclusion, wholly or to any extent, of the part-time members, and effect may be given to any decision of the Board under this subsection either by directions to the Commission under the next succeeding section (which may, in the case of directions for the purposes of this provision, be of a specific character) or by regulations under subsection (11) of the last preceding section.

(4) The Commission shall make arrangements for ensuring that returns or information required under this Act to be furnished to them, being of a class as to which a direction given to the Commission by the Board for the purposes of this provision is for the time being in force, shall be furnished either to the independent members of the Commission, or to the secretary of the Commission, or to some other officer of the Commission specially authorised to receive the returns or information, and no person to whom returns or other information are furnished pursuant to such arrangements shall disclose any of the contents thereof to any of the part-time members of the Commission except in the form of a summary of similar returns or information

furnished by a number of persons, being a summary so framed as not to enable particulars relating to any individual business to be ascertained therefrom.

7.—(1) The Board may, after consultation with the Commission, give to the Commission directions of a general character as to the exercise and performance by the Commission of their functions in relation to matters appearing to the Board to affect the national interest, and the Commission shall give effect to any such directions.

Powers of the
Board of Trade
in relation
to the
Commission.

(2) The Commission shall afford to the Board facilities for obtaining information with respect to the activities and property of the Commission, and shall furnish the Board with returns, accounts and other information with respect thereto, and afford to them facilities for the verification of information furnished, in such manner and at such times as the Board may require.

8.—(1) The Commission shall, as soon as possible after the end of each financial year of the Commission, make to the Board a report on the exercise and performance by them of their functions during that year, and the Board shall lay a copy of every such report before each House of Parliament.

Annual
report of the
Commission.

(2) The report for any year shall set out any direction given by the Board to the Commission during that year unless the Board have notified to the Commission their opinion that it is against the national interest so to do.

Subsidiary functions of the Commission.

9. The Commission may prosecute research into matters relating to the growing and producing of raw cotton, to its transport, storage and preservation, to the treatment thereof so as to render it saleable, or to processes of manufacture to which it is subjected, and may promote such research by others and give assistance (including financial assistance) therefor.

Research.

10. The Commission may operate (either in continuance, with or without modification, of the scheme in that behalf operated by the Board at the passing of this Act in the case of cotton spinners or under fresh arrangements) a scheme for giving protection against risks arising from fluctuations in the prices of raw cotton to persons carrying on any class of business in the United Kingdom that involves the incurring of such risks.

Cover
scheme.

11. The Commission may act as agents—

- (a) for the Board in relation to the buying of cotton linters and cotton waste, the importing, holding and distributing thereof, the treatment thereof so as to render the goods saleable, or any of those matters; or
- (b) for any government department in relation to any arrangements for rendering raw cotton available at any place outside the United Kingdom.

Agency for
government
departments.

General
powers.

12. The Commission shall have power to do any thing or to enter into any transaction which in their opinion is calculated to facilitate the proper discharge of any of their functions under section one of this Act and the three last preceding sections or is incidental or conducive thereto (including any treating of raw cotton required for rendering it saleable in the discharge of those functions), whether or not involving the expenditure, borrowing in accordance with the provisions of this Act in that behalf or lending of money, the acquisition of any property or rights, or the disposal of any property or rights not in their opinion required for the proper discharge of their functions.

*Transfer of cotton assets from Board of Trade, and
financial provisions.*

Transfer to the Commission of in 13.—(1) There shall vest in the Commission, subject to and in accordance with the provisions of this section,—

cotton assets
of the Board
of Trade.

- (a) the property in all raw cotton the property wherein is vested in the Board immediately before the appointed day, and all rights and liabilities of the Board under contracts then subsisting for the sale of raw cotton to or by the Board, for the importing, transport, storage or treatment of raw cotton, or for giving protection against risks arising from fluctuations in the prices of raw cotton under the scheme operated by the Board which is mentioned in section ten of this Act ; and
- (b) all other property then vested in the Board, and all rights and liabilities of the Board under other contracts then subsisting, except contracts of personal service, being property vested in them for the purposes only of functions of theirs relating to the buying, importing, holding or distributing of raw cotton or to matters incidental thereto (including the treatment of raw cotton, and including the operation of the said scheme, but excluding functions relating to cotton linters or cotton waste), or being contracts entered into by them for the purposes only of those functions.

(2) The property, rights and liabilities mentioned in paragraph (a) of subsection (1) of this section shall vest in the Commission, by virtue of this section and without further assurance, on the appointed day.

(3) The property, rights and liabilities which fall within paragraph (b) of subsection (1) of this section shall be determined by the Board, and the Board shall notify particulars thereof in writing to the Commission on the appointed day, or as soon as possible thereafter, and the property, rights and liabilities specified in any notice given to the Commission for the purposes of this subsection shall vest in the Commission, by virtue of this section and without further assurance, on the appointed day or on the day on which the notice is given if later.

(4) The following provisions shall apply to any such contract as is mentioned in subsection (1) of this section, that is to say,—

- (a) any such contract shall have effect in favour of and against the Commission, on and after the day on which the rights and liabilities thereunder vest in them, as if the Commission had been a party thereto instead of the Board ;
- (b) if, by reason of the application to any such contract, as the proper law thereof, of the law of a country outside the United Kingdom or for other cause, the Commission are not in a position to enforce any rights thereunder, the Board shall give to the Commission such assistance in that behalf, whether by executing an assignment of the contract or themselves taking steps to enforce it or otherwise, as it appears to the Board to be in their power to give ;
- (c) the Commission shall indemnify the Board against any expenses incurred by the Board in giving such assistance as aforesaid, or in discharging any liability under any such contract which may be enforced against the Board after the said day ;
- (d) any proceeding or cause of action pending or existing by or against the Board in respect of any such contract immediately before the said day may be continued and enforced by or against the Commission as it might have been by or against the Board if this Act had not been passed.

14.—(1) The net values of the property, rights and liabilities vested in the Commission by virtue of the last preceding section shall be treated for the purposes of this Act as advances made by the Board to the Commission, being—

- (a) to the extent of the net value of the property, rights and liabilities mentioned in paragraph (a) of subsection (1) of the last preceding section, excluding such part thereof as the Board may, with the approval of the Treasury, determine, an advance for the purpose of meeting outgoings of the Commission properly chargeable to revenue account ;
- (b) to the extent of the said excluded part of the net value of the property, rights and liabilities mentioned in the said paragraph (a) and of the net value of the property, rights and liabilities mentioned in paragraph (b) of subsection (1) of the last preceding section, an advance for the purpose of meeting outgoings of the Commission properly chargeable to capital account.

The net value of property, rights and liabilities which is to be treated by virtue of this section as an advance for either of the said purposes is in this Act referred to as the "initial advance" for that purpose.

(2) The net value of the property, rights and liabilities mentioned in paragraph (a) of subsection (1) of the last preceding section shall be such as may be determined by the Board to be the fair value thereof having regard to the world prices of raw cotton at the appointed day and to all other considerations appearing to them to be relevant, and so that, as regards rights and liabilities under contracts of sale of raw cotton by or to the Board,—

- (a) any amount by which the sale price on a contract of sale by the Board is greater or less than the relevant world price shall be disregarded; but
- (b) any amount by which the sale price on a contract of sale to the Board is greater than the relevant world price shall be taken into account so as to decrease the said net value, and any amount by which the sale price on such a contract is less than the relevant world price shall be taken into account so as to increase the said net value.

(3) The net value of the property, rights and liabilities mentioned in paragraph (b) of subsection (1) of the last preceding section shall be determined by taking the aggregate of valuations of the different items as determined by persons to be appointed by the Board as having experience qualifying them to make such valuations.

Advances by
the Board of
Trade to the
Commission.

15. The Board may make to the Commission from time to time advances (in this Act referred to as "periodical advances")—

- (a) for the purpose of meeting outgoings of the Commission properly chargeable to revenue account, of amounts such that the aggregate outstanding at any time in respect of periodical advances for that purpose and of the initial advance therefor shall not exceed the aggregate of the net value of property, rights and liabilities constituting that initial advance and seventy-five million pounds; and
- (b) for the purpose of meeting outgoings of the Commission properly chargeable to capital account, of amounts not exceeding in the aggregate ten million pounds (reckoned without bringing into account the net value of property, rights and liabilities constituting the initial advance for that purpose).

16. The Commission may, with the consent of the Board, or Temporary borrowing by the Commission. in accordance with the terms of any general authority given by the Board, borrow temporarily by way of overdraft or otherwise such sums as they may require for meeting their obligations and discharging their functions under this Act :

Provided that the aggregate of the amounts outstanding in respect of sums so borrowed shall not at any time exceed ten million pounds.

17.—(1) The Commission shall make to the Board, at such Interest on times and in such manner as the Board may, with the approval advances. of the Treasury, direct, payments of interest on what is outstanding for the time being in respect of the initial and any periodical advances.

(2) The rate of the interest to be paid under this section shall be such as the Board, with the approval of the Treasury, may direct, and different rates may be directed as respects different advances or different parts of advances, and as respects interest for different periods.

18.—(1) If the Commission's cash balance at the end of any month (excluding any cash standing to the credit of their reserve fund to be established under this Act) exceeds such sum as may be then the sum fixed by the Board, with the approval of the Treasury, as the maximum cash balance to be held by the Commission, the Commission shall make to the Board a payment of an amount equal to the excess in or towards repayment to the Board of what is then outstanding in respect of the initial and any periodical advances for the purpose of meeting outgoings of the Commission properly chargeable to revenue account. Repayment of advances.

A payment to be made under this subsection shall be made in such manner as the Board may, with the approval of the Treasury, direct, and shall be made forthwith after the end of the month in question or within such number of days thereafter as the Board may so direct.

(2) The initial and any periodical advances for the purpose of meeting outgoings of the Commission properly chargeable to capital account shall be repaid to the Board by the Commission's making, at such times and in such manner as the Board may, with the approval of the Treasury, direct, payments of such amounts as the Board may so direct.

(3) The Commission may make payments to the Board, in or towards repayment of advances, at times earlier than those at which such repayment would be required in accordance with the preceding provisions of this section.

Reserve fund
of the
Commission.

19.—(1) The Commission shall establish a reserve fund.

(2) There shall be paid to the Commission by the Board, and carried by the Commission to the credit of their reserve fund, such sum as the Board, with the approval of the Treasury, may determine to represent the net profit accruing to them from the discharge of functions of theirs relating to the buying, importing, holding or distributing of raw cotton or to matters incidental thereto (including the treatment of raw cotton, and including the operation of the scheme operated by them which is mentioned in section ten of this Act, but excluding functions relating to cotton linters or cotton waste) on or after the first day of April, nineteen hundred and forty-six.

The amount of the said net profit shall be determined having regard to all relevant considerations, including the net value of the property in raw cotton and rights and liabilities vested in the Commission by virtue of paragraph (a) of subsection (1) of section thirteen of this Act as determined for the purposes of section fourteen thereof.

(3) The management of the said fund, and (subject to the provisions of the last preceding subsection) the sums to be carried from time to time to the credit thereof, and the application thereof, shall be as the Commission may determine :

Provided that—

- (a) no part of the said fund shall be applied otherwise than for purposes of the Commission ; and
- (b) the power of the Board to give directions to the Commission shall extend to the giving to them, with the approval of the Treasury, of directions as to any matter relating to the establishment or management of the said fund, the carrying of sums to the credit thereof, or the application thereof, notwithstanding that the directions may be of a specific character.

Commission's
accounts and
audit thereof.

20.—(1) The Commission shall keep proper accounts and other records in relation thereto in such form as the Board may direct, and shall prepare in respect of each financial year of the Commission a statement of accounts in such form as the Board, with the approval of the Treasury, may direct, being a form which shall conform with the best commercial standards.

(2) The accounts of the Commission shall be audited by auditors to be appointed annually by the Board.

(3) So soon as the accounts of the Commission have been audited, they shall send a copy of the statement of accounts referred to in subsection (1) of this section to the Board together with a copy of any report made by the auditors on that statement or on the accounts of the Commission.

(4) The Board shall lay a copy of every such statement and report before each House of Parliament.

21.—(1) The Treasury may issue to the Board out of the Consolidated Fund such sums as are necessary to enable the Board to make to the Commission periodical advances and the payment required by subsection (2) of section nineteen of this Act. Issues from and repayments to the Consolidated Fund, etc.

(2) For the purpose of providing sums (or any part of sums) to be issued under the preceding subsection, or of providing for the replacement of all or any part of sums so issued, the Treasury may, at any time, if they think fit, raise money in any manner in which they are authorised to raise money under the National Loans Act, 1939, and any securities created and issued to raise money under this subsection shall be deemed for all purposes to have been created and issued under that Act. 2 & 3 Geo. 6. c. 117.

(3) Sums received by the Board in respect of interest on advances, or in or towards repayment thereof, shall be paid into the Exchequer, and shall be issued out of the Consolidated Fund at such times as the Treasury may direct, and shall be applied by the Treasury as follows, that is to say,—

- (a) so much thereof as represents principal shall be applied in redeeming or paying off debt of such description as the Treasury think fit ;
- (b) so much thereof as represents interest shall be applied to the payment of interest which would, apart from this provision, have fallen to be paid out of the permanent annual charge for the National Debt.

(4) The Board shall lay before each House of Parliament a statement of any payment due from the Commission to the Board under this Act in respect of interest on advances, or in or towards repayment thereof, which is not duly paid to the Board as required thereunder.

(5) The Board shall, as respects each financial year, prepare in such form and manner as the Treasury may direct, an account of sums received by the Board in respect of interest on advances, or in or towards repayment thereof, and of sums issued to and received by the Board under subsection (1) of this section, and of the disposal by the Board of those sums respectively.

Any account prepared under this subsection shall, on or before the thirtieth day of November next following the expiration of the financial year in question, be transmitted to the Comptroller and Auditor General, who shall examine and certify the account and lay copies thereof, together with his report thereon, before each House of Parliament.

General.

Provisions
as to the
Commission's
obtaining
information.

22. The Board may make regulations for enabling the Commission to obtain all such information as appears to the Commission to be necessary for the purpose of the proper discharge of any of their functions from persons carrying on in the United Kingdom a business which consists of or comprises the subjection of raw cotton to any process of manufacture, and from persons appearing to the Commission to be the owners of, or to have in their possession or under their control, raw cotton in the United Kingdom, and, without prejudice to the generality of this section, provision may be made by the regulations—

- (a) for the keeping and production of records ;
- (b) for the punishment of persons failing to comply with the regulations, or making or producing or furnishing false records or information :

Provided that no punishment provided for shall exceed that imposed by section four of this Act, or, in the case of a fine for a continuing offence, five pounds in respect of each day.

Restriction on
disclosure of
information.

23.—(1) No information relating to any individual business, being information which has been obtained by, or on behalf of, any person for the purpose of functions of his under this Act, shall, without the previous consent in writing of the owner for the time being of that business be disclosed otherwise than in connection with the execution, or for the purposes, of this Act.

(2) Nothing in the preceding subsection shall apply to any disclosure of information made for the purposes of any legal proceedings (including arbitrations) pursuant to this Act or of any criminal proceedings which may be taken whether pursuant to this Act or otherwise, or for the purposes of any report of any such proceedings as aforesaid.

(3) If any person discloses any information in contravention of this section, or of subsection (4) of section six of this Act, he shall be guilty of an offence and shall be liable on summary conviction to a fine not exceeding fifty pounds or to imprisonment for a term not exceeding three months or to both such fine and such imprisonment, or, on conviction on indictment, to a fine not exceeding one hundred pounds or to imprisonment for a term not exceeding two years or to both such fine and such imprisonment.

Provisions
as to
prosecutions,
and as to
offences by
corporations.

24.—(1) No proceedings for an offence against this Act or regulations made thereunder shall be instituted, in England, except by or with the consent of the Board or by the Director of Public Prosecutions, or, in Northern Ireland, except by or with the consent of the Board or by the Attorney-General for Northern Ireland.

(2) Where an offence against this Act or regulations made thereunder has been committed by a body corporate, every person who at the time of the commission of the offence was a director, general manager, secretary or other similar officer of the body corporate, or was purporting to act in any such capacity, shall be deemed to be guilty of that offence, unless he proves that the offence was committed without his consent or connivance and that he exercised all such diligence to prevent the commission of the offence as he ought to have exercised having regard to the nature of his functions in that capacity and to all the circumstances.

(3) Where a person convicted on indictment of an offence against this Act or regulations made thereunder is a body corporate, no provision in this Act or in regulations made thereunder limiting the amount of the fine which may be imposed shall apply to the body corporate, and the body corporate shall be liable to such fine as the court thinks just.

25.—(1) Regulations made under this Act shall be laid before Parliament as soon as may be after they are made, and if either House of Parliament within the period of forty days beginning with the day on which any such regulations are laid before it resolves that the regulations be annulled, the regulations shall thereupon become void, without prejudice, however, to the validity of anything previously done thereunder or to the making of new regulations. Provisions
as to
regulations.

(2) In reckoning any such period of forty days as aforesaid, no account shall be taken of any time during which Parliament is dissolved or prorogued, or during which both Houses are adjourned for more than four days.

(3) Notwithstanding anything in subsection (4) of section one of the Rules Publication Act, 1893, regulations made under this Act shall be deemed not to be, or to contain, statutory rules to which that section applies. 56 & 57 Vict.
c. 66.

26. Anything required or authorised by or under this Act to be done by, to, or before the Board may be done by, to, or before the President of the Board, any secretary, under-secretary or assistant secretary of the Board, or any person authorised in that behalf by the President. Exercise of
powers of
Board of
Trade.

27.—(1) In this Act, unless the context otherwise requires, the following expressions have the meanings hereby assigned to them respectively, that is to say— Interpretation.

“the appointed day” means such day as the Board may by order fix as that on which the Commission are to enter upon the duty with which they are charged by section one of this Act ;

2 & 3 Geo. 6.
c. 54.

"the cotton industry" means spinning, doubling, weaving, and finishing, as defined respectively in subsection (2) of section thirty-eight of the Cotton Industry (Re-organisation) Act, 1939 ;

"process of manufacture" does not include treating so as to render saleable ;

"raw cotton" includes seed cotton, but does not include cotton linters, cotton waste, or bleached or dyed cotton ; and references to a contravention of any provision of this Act, of regulations made thereunder or of terms of a licence, include references to a failure to comply therewith.

(2) For the purposes of this Act, raw cotton removed from the Isle of Man into the United Kingdom shall be deemed to be imported into the United Kingdom.

Short title
and extent.

28.—(1) This Act may be cited as the Cotton (Centralised Buying) Act, 1947.

(2) It is hereby declared that this Act extends to Northern Ireland.

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